



Salvation Army Act 1968

CHAPTER xiii

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ELIZABETH II



1968 CHAPTER xiii

An Act to amend the Salvation Army Act, 1931; to make provision for the management of trusts connected with or related to the interests, aims or purposes of the Salvation Army; and for other purposes.

[30th May 1968]

WHEREAS in or about the year 1865 the religious and charitable body now known as the Salvation Army was established by William Booth the founder and first General of the Salvation Army and its activities which commenced in the east end of London have since been extended to all parts of the world:

And whereas the constitution of the Salvation Army was laid down in a deed poll dated 7th August, 1878, and has since been supplemented and varied by subsequent deeds poll executed by General William Booth and his successors in office and by the Salvation Army Act, 1931 (hereinafter referred to as "the Act 1931 c. xciv. of 1931"):

And whereas by virtue of the Act of 1931 certain properties and funds of the Salvation Army and of certain trusts associated with the Salvation Army were vested in or transferred to the Salvation Army Trustee Company (hereinafter referred to as

“ the Trustee Company ”) formed pursuant to that Act and it was enacted by section 8 of that Act that the said properties and funds should be held by the said company as custodian trustee.

And whereas there are a number of trusts connected with or related to the interests, aims or purposes of the Salvation Army other than those to which section 8 of the Act of 1931 applies:

And whereas the Trustee Company cannot be appointed to act as custodian trustee in relation to those other trusts (whether now subsisting or created in the future) and it is expedient that such appointments should be authorised and that other provision for the management of such other trusts should be made as is in this Act provided:

And whereas certain of those other trusts have been wholly or in part administered by the Trustee Company purportedly as custodian trustee and it is expedient that the administration of such trusts should be validated and that doubts as to the validity of their administration heretofore should be resolved:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Salvation Army Act 1968.

(2) The Salvation Army Acts, 1931 and 1963, and this Act may be cited together as the Salvation Army Acts, 1931 to 1968.

Interpretation.

2.—(1) In this Act, unless the subject or context otherwise requires—

1931 c. xciv.

“ the Act of 1931 ” means the Salvation Army Act, 1931;

“ the General ” means the General for the time being of the Salvation Army;

“ the Trustee Company ” means the Salvation Army Trustee Company.

(2) Unless the subject or context otherwise requires, references in this Act to any enactment shall be construed as references

that enactment as applied, extended, amended, varied, re-enacted or replaced by or by virtue of any subsequent enactment including this Act.

3. The following subsection shall be substituted and shall be deemed always to have been substituted for subsection (1) of section 8 (The Trustee Company to act as custodian trustee) of the Act of 1931:—

“(1) The Trustee Company—

- (a) shall in relation to the property vested in or transferred to it by or pursuant to the provisions of this Act act as custodian trustee only; and
- (b) may be appointed to be the custodian trustee of any other property which at any time after the passing of this Act may be held upon trust in connection with the Salvation Army or in which the Salvation Army may be interested or the performance of which may directly or indirectly further any of the aims or purposes of the Salvation Army;

and the provisions of section 4 of the Public Trustee Act, 1906 c. 55, 1906, shall extend to the Trustee Company in like manner as they extend to a body corporate entitled by rules made under that Act to act as custodian trustee and any such custodian trusteeship of the Trustee Company shall be terminable only in accordance with the provisions of paragraph (i) of subsection (2) of section 4 of the said Act of 1906.

In this subsection ‘trust’ shall be deemed to include any trust governed by the law of any part of the United Kingdom, the Channel Islands, the Isle of Man or the Republic of Ireland.”

4.—(1) If and so far as at any time prior to the passing of this Act the Trustee Company has purported to act as custodian trustee of the property of any trust to which section 8 (1) (b) of the Act of 1931 extends it shall be deemed to have been validly appointed to act, and to have validly so acted, as from the date upon which it commenced so to act and any relinquishment by the Trustee Company of office as such custodian trustee prior to the commencement of this Act shall be deemed to have been of no effect:

Provisions supplemental to section 3 of this Act.

Provided that nothing in this subsection shall be deemed to invalidate any act or thing done prior to the passing of this Act in reliance upon any such purported relinquishment of office as aforesaid or upon any assumed incapacity of the Trustee Company to act.

(2) Nothing in this or the last foregoing section shall be deemed to invalidate any purported appointment of the Trustee Company made prior to the passing of this Act to the trusteeship of a trust otherwise than as a custodian trustee.

(3) The General may be appointed ex officio to be the managing trustee of any trust within the meaning of subsection (1) of section 8 of the Act of 1931 of which the Trustee Company is appointed custodian trustee under or in pursuance of that subsection.

Amendment
of section 5
of the Act
of 1931.

5. In subsection (1) of section 5 (Trustee company to be formed) of the Act of 1931 the words “ (in this section called ‘ the Act of 1929 ’) ” shall be omitted and in subsections (2) and (3) of that section for the words “ Act of 1929 ” in each place where they appear there shall be substituted the words “ Companies Acts, 1948 to 1967, or any enactment extending, amending or replacing any of the provisions thereof ”.

Amendment
of section 10
of the Act
of 1931.

6. In section 10 (As to payment of expenses of the Trustee Company) of the Act of 1931—

(a) there shall be inserted after the words “ British and Northern Irish property ”, where those words secondly occur, the words “ and any other trust (in this section called an “ ancillary trust ”) of which it is appointed to be the custodian trustee pursuant to paragraph (b) of subsection (1) of the section of this Act of which the marginal note is “ Trustee Company to act as custodian Trustee ” ”; and

(b) at the end of the section there shall be added—

“ Provided that the Trustee Company may in its discretion omit any ancillary trust from any apportionment made pursuant to this section if in the opinion of the Trustee Company the proportion attributable to that trust would be trifling.”

Application
of Act to
Northern
Ireland.
1920 c. 67.

7. For the purposes of section 6 of the Government of Ireland Act, 1920, this Act shall so far as it relates to matters within the powers of the Parliament of Northern Ireland be deemed to be an Act passed before the appointed day within the meaning of that section.

Costs of Act.

8. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Trustee Company.

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